

any party, person, or attorney who unsuccessfully makes or opposes a motion for a protective order unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.).

Plaintiffs engaged in substantial efforts to meet and confer efforts to resolve the matter. See Declaration of Michael W. Rupprecht filed September 22, 2025 as part of Opposition, ¶19 *et seq.* and Declaration of Michael W. Rupprecht filed October 16, 2025, ¶12 *et seq.* Moreover, Plaintiffs' opposition rested on principled and substantial arguments, although ultimately the Court was persuaded to largely grant the motion as set forth herein.

Accordingly, the Court finds that Plaintiffs acted with substantial justification and the Court DENIES sanctions.

Disposition

The Court finds and rules as follows:

1. The Motion for a Protective Order and Other Relief is GRANTED IN PART and DENIED IN PART, as set forth above. Any affirmative relief requested and not addressed herein is DENIED.
2. The parties shall meet and confer within fourteen (14) days on (a) selection of the Discovery Referee and (b) a form of Discovery Referee appointment order.
3. If the parties do not agree on the person to be appointed as the Discovery Referee, the parties shall submit to the Court up to three nominees for appointment and the Court shall appoint the Discovery Referee pursuant to Code of Civil Procedure section 640(b). A single joint submittal by email to Department 34 shall set forth the parties' respective nominees and attach the proposed form of Discovery Referee appointment order. Such submittal shall be made within twenty-one (21) days of notice of entry of this order.
4. Plaintiffs' motion to compel responses to the Discovery Requests filed October 30, 2025 and set for hearing on May 4, 2026 is STRICKEN and the hearing date VACATED in light of the Court's ruling herein. The Discovery Referee shall oversee the process for responses to such Discovery Requests consistent with the provisions of this order.
5. The Court shall issue the order after hearing.

2. 9:00 AM CASE NUMBER: C24-01939
CASE NAME: NICKOLAI POPOV VS. ALEXANDER POPOV
***HEARING ON MOTION IN RE: STAY - CONTINUED FROM 1/26/26**
FILED BY:
TENTATIVE RULING:

Defendant Alexander Popov ("Defendant Popov") filed a Motion to Stay ("Motion to Stay") in this matter on July 31, 2026. The Motion to Stay was initially set for hearing on November 10, 2025.

As noted in a prior tentative ruling, at a hearing on August 4, 2025, the Court continued this motion until after the probate hearing regarding the administrator of the Estate of Nickolai Popov on August 25, 2025, in a related Probate matter, Case No. P25-00516 (the "Probate Case"), and ordered additional briefing.

The Court later continued the hearing on Motion to Stay (and another pending motion, the Motion to Set Aside and Vacate Judgment of Dismissal on the Grounds of Undue Influence and Lack of Capacity filed April 14, 2025 by Michael Popov) to January 26, 2026, until after the resolution of a Motion to Set Aside the Appointment of Special Administrator in the Probate Case set to be heard on December 16, 2025.

At the hearing on January 26, 2026, this Court again continued the Motion to Stay until after the Probate hearing regarding the special administrator of the Estate of Nickolai Popov on January 27, 2026.

The Probate Court granted a temporary order assigning Michael Popov as Special Administrator due to the original order being set to expire and continued the Motion to Set Aside the Appointment of Special Administrator to January 27, 2026.

At the January 27, 2026, Probate hearing in The Probate Case, the Court stayed the case pending the ongoing criminal matter in Solano County (Solano County Case No. F25-01634) (the "Solano County Criminal Proceedings"), continuing the next hearing to August 4, 2026.

The Court finds that it is necessary and appropriate to stay this case considering the Solano County Criminal Proceedings and the ruling by the Court in the Probate Case.

The **Court GRANTS the Motion to Stay.**

The Court set a status conference regarding the status of the Criminal Proceedings and the Probate Case on August 08, 2026, at 8:30 am in Department 34.

3. 9:00 AM CASE NUMBER: C24-02356
CASE NAME: MINKYU KIM, PHD VS. CG PHARMACEUTICALS, INC.
***HEARING ON MOTION IN RE: PRO HAC VICE OF PHILIP B ZIPIN ORG FILED ON 11/15/24**
FILED BY:
TENTATIVE RULING:

On December 29, 2025, defendant CG Pharmaceuticals, Inc. ("Defendant") filed an application for leave for attorney Austin D. Kim ("Counsel") to appear on its behalf *pro hac vice* in this matter (the "Pro Hac Vice Application"). The Pro Hac Vice Application was set for hearing on March 16, 2026.

However, the motion was withdrawn by Defendant's Notice of Withdrawal filed February 19, 2026.

Disposition

The Court finds and rules as follows:

1. The Pro Hac Vice Application is DROPPED from calendar as WITHDRAWN.

4. 9:00 AM CASE NUMBER: C25-00229
CASE NAME: UMPQUA BANK, AN OREGON STATE-CHARTED BANK VS. NICKOLAI POPOV
***HEARING ON MOTION IN RE: STAY**
FILED BY:
TENTATIVE RULING:

Introduction

Defendant Alexander Popov ("Defendant Popov") filed a Motion to Stay ("Motion to Stay") this